

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2025PRTR048243: IN RE THE CHRISTUS FAMILY TRUST 1992

07/29/2026 in Department J6

**Motion to Compel Respondent Robert Heatherly's Further Responses to Form
Interrogatories, Set One**

Form Interrogatory 15.1 requires the opposing party to identify each denial and defense in his response and provide all facts, all persons, and all documents that support (1) their denials, and (2) their affirmative defenses, and (3) identify all documents (or things) (including the name, address and phone number of the person who has each document) supporting each denial. Likewise, the opposing party must identify all facts, witnesses, and documents that support each and every affirmative defense.

The response to the petition filed 10/23/25 does not contain specific affirmative defenses but does contain denials. It is in the narrative form, which is how responses in Probate are typically written (and is preferred).

The court intends to grant the motion to compel a further response to Form Interrogatory 15.1. Respondent is required to identify the grounds for his denials and respond to Form Interrogatory 15.1 in that manner.

Sanctions: CCP §2030.300 provides, in pertinent part:

(d) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

The court intends to deny the request for sanctions. Sanctions are not warranted as respondent is technically accurate that his response does not contain the typical civil type denials and affirmative defenses. However, Respondent is ordered to supplement his response and identify the grounds he bases his objection on (denials) and provide a response to Form Interrogatory based on those denials.